

Public Law 101-254
101st Congress

An Act

To extend and amend the Library Services and Construction Act, and for other purposes.

Mar. 15, 1990
[H.R. 2742]

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

Library Services
and
Construction Act
Amendments of
1990.
20 USC 351 note.

SECTION 1. SHORT TITLE; REFERENCES.

(a) **SHORT TITLE.**—This Act may be cited as the “Library Services and Construction Act Amendments of 1990”.

(b) **REFERENCES.**—References in this Act to “the Act” are references to the Library Services and Construction Act (20 U.S.C. 351 et seq.).

SEC. 2. DEFINITIONS.

Section 3 of the Act is amended—

20 USC 351a.

(1) in paragraph (2)—

(A) by striking “and initial equipment” and inserting “and for the purchase, lease, and installation of equipment”;

(B) by striking “to conserve energy” and inserting “to ensure safe working environments and to conserve energy”; and

(C) by striking “includes machinery” and inserting “includes information and building technologies, video and telecommunications equipment, machinery”; and

(2) by adding at the end thereof the following new paragraphs:

“(17) The term ‘handicapped individual’ means an individual who is physically or mentally impaired, visually impaired, or hearing impaired.

“(18) The term ‘network’ means any local, statewide, regional, interstate, or international cooperative association of library entities which provide for the systematic and effective coordination of the resources of school, public, academic, and special libraries and information centers for improved supplementary services for the clientele served by each type of library entity.”.

SEC. 3. AUTHORIZATION OF APPROPRIATIONS.

(a) **AMENDMENT.**—Section 4(a) of the Act is amended to read as follows:

20 USC 351b.

“SEC. 4. (a) There are authorized to be appropriated—

“(1) for the purpose of making grants as provided in title I, \$100,000,000 for fiscal year 1990 and such sums as may be necessary for each of the 4 succeeding fiscal years;

“(2) for the purpose of making grants as provided in title II, \$55,000,000 for fiscal year 1990 and such sums as may be necessary for each of the 4 succeeding fiscal years;

“(3) for the purpose of making grants as provided in title III, \$35,000,000 for fiscal year 1990 and such sums as may be necessary for each of the 4 succeeding fiscal years;

"(4) for the purpose of making grants as provided in title V, \$1,000,000 for fiscal year 1990 and such sums as may be necessary for each of the 4 succeeding fiscal years;

"(5) for the purpose of making grants as provided in title VI, \$10,000,000 for fiscal year 1990 and such sums as may be necessary for each of the 4 succeeding fiscal years;

"(6) for the purpose of activities as provided in title VII, \$500,000 for fiscal year 1990 and such sums as may be necessary for each of the 4 succeeding fiscal years; and

"(7) for the purpose of making grants as provided in title VIII, \$6,000,000 for fiscal year 1990 and such sums as may be necessary for each of the 4 succeeding fiscal years, except that no amounts are authorized to be appropriated under this paragraph for any fiscal year unless the total amount appropriated pursuant to paragraphs (1), (2), and (3) for such fiscal year equals or exceeds sum of the total amount appropriated pursuant to such paragraphs for the preceding fiscal year, plus 4 percent of such total amount.

There shall be available for the purpose of making grants under title IV for each of the fiscal years 1990, 1991, 1992, 1993, and 1994, 1.5 percent of the amount appropriated pursuant to each of paragraphs (1), (2), and (3) for each such fiscal year. There shall be available for the purpose of making grants under section 5(d) for such fiscal years 0.5 percent of the amount appropriated pursuant to each of such paragraphs for each such fiscal year."

20 USC 351b.

(b) CARRYOVER OF FUNDS.—Section 4(b) of the Act is amended by striking "and for the next succeeding fiscal year" and inserting "and is authorized to remain available until expended".

SEC. 4. ALLOCATIONS.

20 USC 351c.

(a) AMENDMENT.—Section 5(c) of the Act is amended to read as follows:

Indians.

"(c)(1) From one-half of the sums available pursuant to the second sentence of section 4(a) for any fiscal year, the Secretary shall allot an equal amount to each Indian tribe that submits an approved application under section 403.

"(2) From the remaining one-half of the sums available pursuant to such second sentence, the Secretary shall make allocations to Indian tribes that (A) are receiving an allocation under paragraph (1) of this subsection for such fiscal year; and (B) have submitted approved applications under section 404.

"(3) In making allocations under paragraph (2)—

"(A) no funds shall be allocated to an Indian tribe unless such funds will be administered by a librarian; and

"(B) the Secretary shall take into account the needs of Indian tribes for such allocations to carry out the activities described in section 402(b).

"(4) In making allocations under this subsection, the Secretary shall take such actions as may be necessary to prevent an allocation from being received to serve the same population by any 2 or more of the following entities (as defined in or established pursuant to the Alaskan Native Claims Settlement Act): an Alaskan native village, a regional corporation, or a village corporation."

20 USC 351d.

(b) CONFORMING AMENDMENT.—Section 6(g)(2) of the Act is amended by inserting after "section 5(c)(2)" the following: "in the same fiscal year in which it has received an allocation under section 5(c)(1)".

SEC. 5. ANTIDISCRIMINATION PROVISION.

Section 6(b) of the Act is amended by—

20 USC 351d.

- (1) striking “and” at the end of paragraph (3);
- (2) redesignating paragraph (4) as paragraph (5); and
- (3) inserting the following new paragraph (4) after paragraph (3):

“(4) provide assurances that libraries within the State that receive funds under this Act shall not discriminate on the basis of race, religion, age, gender, national origin, or handicapping condition in providing space for public meetings; and”.

SEC. 6. RESOURCE SHARING COORDINATION.

State and local governments.

Section 6 of the Act is amended—

- (1) in subsection (d)(1), by striking “and construction” and inserting “, construction, and interlibrary cooperation and resource sharing”; and

- (2) by adding at the end thereof the following new subsection:

“(h) The Secretary shall coordinate programs under titles V and VI of this Act with the programs assisted by titles I, II, and III of this Act, and shall provide to the head of the State library administrative agency the opportunity to comment on any application for a grant under title V or VI of this Act prior to the awarding of the grant, in order to assure that such grants from the Secretary are for purposes consistent with the long-range program required under subsection (d) of this section.”.

SEC. 7. MAINTENANCE OF EFFORT.

State and local governments.
20 USC 351e.

(a) **GENERAL REQUIREMENT.**—Section 7(a) of the Act is amended by striking paragraphs (1) and (2) and inserting the following:

“(1) there will be available from State and local sources for expenditure under the programs, during the fiscal year for which the allotment is made, an amount that equals or exceeds the amount required to provide the State percentage as required by subsection (b); and

“(2)(A) there will be available for expenditure for State aid to public libraries and library systems, during the fiscal year for which the allotment is made, an aggregate amount equal to 90 percent of the amount actually expended for such purposes in the second preceding fiscal year; and

“(B) there will be available for expenditure, during the fiscal year for which the allotment is made, for the State library administrative agency, or for the part thereof charged by State law with the extension and development of public library services throughout the State, an aggregate amount equal to 90 percent of the amount actually expended for such purpose in the second preceding fiscal year.

The Secretary may, in accordance with regulations, waive the requirements of paragraph (2) of this subsection, if the Secretary determines that the application of such paragraph would be unjust or unreasonable in the light of exceptional extenuating circumstances.”.

(b) **INSTITUTIONAL LIBRARY SERVICES.**—The last sentence of section 103 is amended by inserting before the period at the end thereof the following: “and to the extent that the Secretary determines that the populations served by such expenditures has declined”.

20 USC 354.

SEC. 8. EDUCATION RESEARCH LIBRARY.

(a) **AMENDMENT.**—The Library Services and Construction Act is further amended by inserting after section 8 the following new section:

“EDUCATION RESEARCH LIBRARY

20 USC 351g.

“SEC. 9. None of the activities or functions of the Department of Education Research Library which are utilized, directly or indirectly, by the Secretary in carrying out this Act and which were not performed by contractors as of July 26, 1989, shall be contracted out or otherwise transferred from the Federal Government before September 30, 1991, unless such transfer is expressly authorized by statute, or unless the value of all work performed under the contract and related contracts in each fiscal year does not exceed \$50,000.”.

Reports.

(b) **STUDY REQUIRED.**—The Comptroller General shall conduct a study of the Department of Education Research Library. The Comptroller General shall prepare and submit a report on the study required by this section by no later than January 30, 1991, together with such recommendations and any statutory changes required to carry out such recommendations, as the Comptroller deems necessary. Such study shall include—

(1) an assessment of the historic and scholastic value and significance of the library's collection to educators, education researchers, historians, and others;

(2) a review of the feasibility and merits of expanding public access to and use of the library's collections and alternative means by which such access could be promoted; and

(3) an evaluation of the quality and effectiveness of services provided by the library to Department personnel and recommendations for improving such services.

Voluntarism.

20 USC 352.

SEC. 9. INTERGENERATIONAL LIBRARY SERVICES.

Section 101 of the Act is amended—

(1) by redesignating paragraphs (5) and (6) as paragraphs (9) and (10), respectively; and

(2) by inserting after paragraph (4) the following new paragraph:

“(5) for assisting libraries in developing intergenerational library programs that will match older adult volunteers with libraries interested in developing after school literacy and reading skills programs for unsupervised school children during afterschool hours;”.

SEC. 10. CHILDCARE LIBRARY OUTREACH.

Section 101 of the Act is further amended by inserting after paragraph (5) the following new paragraph:

“(6) for assisting libraries in providing mobile library services and programs to child-care providers or child-care centers which are licensed or certified by the State, or otherwise meet the requirements of State law;”.

SEC. 11. LIBRARY LITERACY CENTERS.

Section 101 of the Act is further amended by inserting after paragraph (6) the following new paragraph:

“(7) to establish and support model library literacy centers, coordinated by the State library administrative agency with other interested State agencies and nonprofit organizations to

reduce the number of functionally illiterate individuals and to help them reach full employment.”.

SEC. 12. DRUG ABUSE PREVENTION.

Section 101 of the Act is further amended by inserting after paragraph (7) the following new paragraph:

“(8) for assisting libraries in providing and displaying educational materials, and conducting community-wide programs, aimed at preventing and eliminating drug abuse, in cooperation with local education agencies or other agencies or organizations, if appropriate;”.

SEC. 13. USE OF TITLE I FUNDS.

Section 102(a) of the Act is amended by adding at the end thereof the following new sentence: “In carrying out its program to accomplish the purposes of this title, a State may make subgrants to library systems or networks which include libraries other than public libraries, if the purpose of the subgrant is to improve services for public library patrons.”. 20 USC 353.

SEC. 14. RATABLE REDUCTIONS OF MAJOR URBAN RESOURCE LIBRARIES.

Section 102(c) of the Act is amended by adding at the end thereof the following new paragraph:

“(3) No State shall, in carrying out the provisions of paragraph (2) of this subsection, reduce the amount paid to any major urban resource library below the amount that such library received in the fiscal year preceding the fiscal year for which the determination is made under such paragraph (2), except that such amount may be ratably reduced to the extent that (A) the total Federal allocations to the State under section 5 for purposes of this title for the applicable fiscal year are reduced, or (B) the 1990 Census shows the population of the city served by such library has decreased.”.

SEC. 15. STATE ANNUAL PROGRAM.

Section 103 of the Act is amended—

20 USC 354.

(1) in paragraph (3), by striking “and institutionalized individuals”;

(2) in paragraph (4), by striking everything following “elderly” the first place it appears and inserting a semicolon; and

(3) by striking paragraph (5) and inserting the following:

“(5) describe the uses of funds to make library services and programs more accessible to handicapped individuals.”.

SEC. 16. TECHNOLOGY ENHANCEMENT.

(a) **DEFINITION.**—Section 3 of the Act is further amended by adding at the end thereof the following new paragraph:

“(19) The term ‘technology enhancement’ means the acquisition, installation, maintenance, or replacement, of substantial technological equipment (including library bibliographic automation equipment) necessary to provide access to information in electronic and other formats made possible by new information and communications technologies.”.

(b) **USE OF TITLE I FUNDS.**—Section 101 of the Act is further amended—

(1) by striking “and” at the end of paragraph (9) (as redesignated by section 7(1));

(2) by striking the period at the end of paragraph (10) (as redesignated by section 7(1)) and inserting “; and”; and

(3) by adding at the end thereof the following new paragraph:

“(11) for assisting public libraries in making effective use of technology to improve library and information services.”.

(c) **USE OF TITLE II FUNDS.**—Title II of the Act is amended—

(1) by inserting “AND TECHNOLOGY ENHANCEMENT” after “CONSTRUCTION” in the heading of such title;

(2) by inserting “AND LIBRARY AND INFORMATION TECHNOLOGY ENHANCEMENT” after “CONSTRUCTION” in the head of section 201;

(3) by inserting “and technology enhancement” after “construction” each place it appears in sections 201, 202(a), 202(b), 203(1), 203(2), and 203(3);

(4) by striking “section 3(2)” in section 202(a) and inserting “sections 3(2) and 3(19), respectively”; and

(5) by inserting “AND TECHNOLOGY ENHANCEMENT” after “CONSTRUCTION” in the heading of section 203.

(d) **USE OF TITLE III FUNDS.**—Section 302(a) of the Act is amended—

(1) by striking “and” at the end of clause (1); and

(2) by inserting before the period at the end of clause (2) the following: “; and (3) developing the technological capacity of libraries for interlibrary cooperation and resource sharing”.

SEC. 17. PRESERVATION OBJECTIVES IN CONSTRUCTION.

Section 203 of the Act is amended—

(1) by striking the period at the end of paragraph (4) and inserting “; and”; and

(2) by adding at the end thereof the following new paragraph:

“(5) follow policies and procedures in the construction of public libraries that will promote the preservation of library and information resources to be utilized in the facilities.”.

SEC. 18. RESOURCE SHARING.

(a) **ATTAINMENT OF COMPLIANCE WITH RESOURCE SHARING PLANS.**—Sections 301 and 304(a) of the Act are each amended by striking “eventual” and inserting “attaining”.

(b) **SCHOOL LIBRARY RESOURCES.**—Section 304 of the Act is amended by adding at the end thereof the following new subsection:

“(e) Public and school libraries which cooperate to make school library resources available to the public during periods when school is not in session may be reimbursed for such expenses.”.

SEC. 19. PRESERVATION COOPERATION.

Title III of the Act is amended by adding at the end thereof the following new section:

“PRESERVATION PROGRAMS

“SEC. 305. (a) The long-range program and annual program of each State under this title may—

“(1) include a statewide preservation cooperation plan that complies with this section; and

“(2) identify the preservation objectives to be achieved during the period covered by the long-range plans required by section 6.

“(b) A statewide preservation cooperation plan complies with this section if—

"(1) such plan specifies the methods by which the State library administrative agency will work with libraries, archives, historical societies, scholarly organizations, and other agencies, within or outside the State, in planning, education and training, coordinating, outreach and public information, and service programs to ensure that endangered library and information resources are preserved systematically; and

"(2) such preservation plan is developed in consultation with such parties and agencies as the State archives, historical societies, libraries, scholarly organizations, and other interested parties.

"(c) A State which has a statewide preservation cooperation plan that complies with this section may use funds under this title to carry out such plan.

"(d) The State library administrative agency may contract part or all of the preservation program under this section to other agencies or institutions."

SEC. 20. MAXIMUM GRANTS UNDER TITLE V.

Section 501(c) of the Act is amended by striking "\$15,000." and inserting "\$35,000, except that—

"(1) not more than 30 percent of the funds available for grants under this title in any fiscal year may be used to make grants in amounts between \$35,000 and \$125,000; and

"(2) no recipient may receive more than one grant under this title for any fiscal year."

SEC. 21. LIBRARY LITERACY GRANTS.

Section 601(e) of the Act is amended by striking "\$25,000" and inserting "\$35,000".

SEC. 22. EVALUATION AND ASSESSMENT.

(a) AMENDMENT.—The Act is further amended by adding at the end thereof the following new title:

"TITLE VII—EVALUATION AND ASSESSMENT

"PROGRAM AUTHORITY

"SEC. 701. The Secretary is authorized to carry out a program for the purpose of evaluation and assessment (directly or by grants or contracts) of programs authorized under this Act." Grants. Contracts. 20 USC 381.

(b) CONFORMING AMENDMENT.—Section 5(a) of the Act is amended by striking out paragraph (5). 20 USC 351c.

SEC. 23. FAMILY LEARNING CENTER PROGRAMS.

(a) AMENDMENT.—The Library Services and Construction Act is amended by adding at the end the following:

"TITLE VIII—LIBRARY LEARNING CENTER PROGRAMS

"PART A—FAMILY LEARNING CENTERS

"STATEMENT OF PURPOSE

"SEC. 801. It is the purpose of this part to expand and improve opportunities for lifetime learning and the involvement of the Nation's families as partners in their children's education by providing 20 USC 385.

comprehensive, family-oriented library services through Family Learning Centers.

“GRANTS FOR FAMILY LEARNING CENTERS

20 USC 385a.

“SEC. 802. The Secretary shall carry out a program of making grants from sums appropriated pursuant to paragraph (7) of section 4(a) to local public libraries for the purposes of supporting family learning centers.

“USE OF FUNDS

20 USC 385b.

“SEC. 803. (a) Funds made available to a grantee under this part shall be used to initiate, expand, or improve public library services to families.

“(b) Not less than 25 percent of the funds made available under this part shall be used for the acquisition of resources and materials in print and electronic formats—

“(1) which are intended for use by and with adults, including materials in such areas as child care, child development, nutrition, parenting skills, and job and career information; and

“(2) which are intended for use by and with children and adolescents.

“(c) Not less than 10 percent of the funds made available to a grantee under this part shall be used for—

“(1) the acquisition or leasing of computer hardware for use by library patrons, including services necessary for the operation, installation, and maintenance of such equipment; and

“(2) the acquisition of computer software and complementary explanatory material for use by library patrons.

“APPLICATION

20 USC 385c.

“SEC. 804. (a) Any local public library which wishes to receive a grant under this part shall submit an application to the Secretary at such time, in such form, and containing such information as the Secretary determines is necessary to evaluate the quality of the applicant's proposal and the applicant's ability to carry it out.

“(b) Each such application shall—

“(1) describe the manner in which the funds will be used to initiate, expand, or improve library services to families;

“(2) provide assurances that the library will be open on weekday evenings, Saturdays, and some Sundays and legal public holidays to enable families in which both parents work outside the home to utilize the library's services;

“(3) demonstrate that the library has or will have sufficient qualified staff with specialized training in providing library services to children, adolescents, and adults;

“(4) provide for the establishment of an advisory committee consisting of parents, teachers, local school administrators, librarians, library administrators, library trustees, local elected officials, and business leaders, at least one-third of whom are parents who regularly use the services of the library;

“(5) provide for the establishment of a family library loan program through which families may borrow sets of books for extended periods, and other innovative programs and policies designed to encourage greater use of the library by families;

"(6) provide for a job and career information program to provide information and assistance to parents and others who are unemployed or seeking a new job;

"(7) describe, if appropriate, any special services and outreach activities which will be offered to meet the needs of—

"(A) adolescent parents;

"(B) single-parent families;

"(C) families in which both parents are employed outside the home;

"(D) parents and children with limited English language proficiency; and

"(E) educationally disadvantaged adults and their children;

"(8) describe the methods by which the library will publicize and promote the services of the Center in cooperation with the local media, schools, businesses, social service agencies, and other appropriate entities; and

"(9) provide assurances that the funds provided will be used to supplement and not supplant funds otherwise available for the purposes of this part.

"SELECTION OF FAMILY LEARNING CENTERS

"SEC. 805. (a) The Secretary shall select family learning centers on a competitive basis from among the local public libraries submitting applications under section 804. In making such selection, the Secretary shall give priority to applications which— 20 USC 385d.

"(1) promise to serve a significant number of families on a regular basis; and

"(2) offer innovative approaches to improving library services for families and approaches which show promise for replication and dissemination.

"(b) In making grants under this title, the Secretary shall assure that there is an equitable distribution of grants among the States and between urban and rural communities.

"(c) No grant made under this title for any fiscal year shall exceed \$200,000.

"AUTHORIZATION OF APPROPRIATIONS

"SEC. 806. There are authorized to be appropriated \$3,000,000 for fiscal year 1990 and such sums as may be necessary for each succeeding fiscal year to carry out the provisions of this part. 20 USC 385e.

"PART B—LIBRARY LITERACY CENTERS

State and local governments.

"STATEMENT OF PURPOSE

"SEC. 811. The purposes of this part are to—

20 USC 386.

"(1) establish model library literacy centers throughout the country to serve as resource centers for the dissemination of literacy materials and equipment to local public libraries in order to help overcome the high incidence of adults with limited literacy skills in the United States;

"(2) help adults with limited literacy skills reach full employment through nonthreatening learning experiences in their local public library or in their own home; and

“(3) offer innovative approaches to improving library literacy services to adults and approaches which show promise for replication and dissemination.

“GRANTS TO STATES FOR LIBRARY LITERACY CENTERS

20 USC 386a.

“SEC. 812. (a) The Secretary shall carry out a program of making grants on a competitive basis to States which have an approved basic State plan under section 6 of this Act and an approved application under section 813 of this Act.

“(b)(1) The total grant amount awarded to each State shall not exceed—

“(A) \$350,000 in the first fiscal year in which a State receives a grant under this part; and

“(B) \$100,000 in the second and third fiscal years in which a State receives a grant under this part.

“(2) Funds received in the first fiscal year in which a State receives a grant under this part shall remain available until expended. Funds received in the second and third fiscal year in which a State receives a grant under this part shall be available only for the fiscal year for which funds are received.

“(3) Funds received in the second and third fiscal years in which a State receives a grant under this part shall be matched, on a dollar for dollar basis, from non-Federal sources.

“STATE APPLICATION

Grants.
20 USC 386b.

“SEC. 813. (a) Funds appropriated pursuant to section 818 shall be available for grants to States for the purpose of supporting not more than 1 library literacy center in each State to coordinate the statewide distribution of library literacy materials and equipment on a loan basis to local public libraries within the State.

“(b) Any State wishing to receive a grant shall, through its State library administrative agency, in conjunction with the advisory committee established under section 816, submit an application to the Secretary at such time, in such form, and containing such information and assurances as the Secretary may reasonably require. No application may be approved by the Secretary unless it contains assurances that the State will—

“(1) designate the State library administrative agency, or select a local public library through a competitive process, to serve as a library literacy center in accordance with the provisions of this part;

“(2) provide assurances that the library literacy center will—

“(A) select local public libraries to participate in a literacy materials and equipment loan program;

“(B) select at least 25 percent of the local libraries that participate in the literacy materials and equipment loan program from rural areas;

“(C) give priority in the selection of local public libraries to participate in the literacy materials and equipment loan program to public libraries within the State which serve those in greatest need;

“(D) coordinate the distribution of equipment and materials;

“(E) provide training to local public library personnel;

"(3) describe how the results of the grant program will be evaluated and disseminated;

"(4) set forth the potential of the grant program for achieving replicability and for serving as a model program; and

"(5) distribute 100 percent of the amounts received pursuant to this part to the library literacy center as designated or selected under section 817.

"(c) The Secretary shall give priority to applicants whose applications comply with the provisions of this part and describe programs and services to be delivered in States which have—

"(1) the highest concentrations of adults who do not have a secondary education or its equivalent,

"(2)(A) few community or financial resources to establish the program described under this part without Federal assistance, or

"(B) low per capita income, or high concentrations of unemployment or underemployment.

"USE OF FUNDS

"SEC. 814. (a) Funds made available under this part shall be used by the library literacy centers to establish coordination centers to make literacy materials and equipment available to local public libraries on a loan basis to initiate, expand, or improve public library literacy services and programs. Such services and programs may include— 20 USC 386c.

"(1) the acquisition of literacy education equipment including, but not limited to, video recorders and television monitors;

"(2) the acquisition of print materials, audio tapes and video tapes designed to train adults with limited literacy skills, including materials and tapes prepared by public television;

"(3) the acquisition of library resource materials for literacy instruction purposes;

"(4) the acquisition of literacy training materials including but not limited to General Education Development (GED) print materials and video tapes; and

"(5) staffing for coordination and training of local library personnel on literacy services.

"(b) Each library literacy center receiving a grant under this part may use no more than 25 percent of such funds for the acquisition of literacy education computers and computer software.

"LOCAL APPLICATION

"SEC. 815. (a) Any local public library desiring to participate in programs and services conducted pursuant to this part shall submit an application to the State or the library literacy center as selected by the State under section 817 at such time, in such form, and containing such information as the State or the library literacy center determines is necessary to evaluate the quality of the local public library's proposal and the local public library's ability to carry out such proposal. 20 USC 386d.

"(b) Each such application shall—

"(1) describe the manner in which the equipment and materials will be used to initiate, expand, or improve local library literacy services;

"(2) demonstrate that the library has or will have sufficient qualified staff and volunteers with specialized training in providing library literacy services to adults;

"(3) provide for the establishment of—

"(A) a library literacy loan program through which adults with limited literacy skills or individuals helping illiterate adults to learn to read may borrow books, video tapes, and other learning materials; and

"(B) other innovative programs and policies designed to encourage greater use of the library by adults with limited literacy skills or individuals helping illiterate adults learn to read;

"(4) provide assurances that coordination will take place with literacy organizations and community-based organizations providing literacy services;

"(5) provide job and career information to adults with limited literacy skills who are unemployed or seeking a new job;

"(6) provide information or referrals to other adult education opportunities in the community;

"(7) describe, if appropriate, any special services and outreach activities which will be offered to meet the needs of adults with limited literacy skills;

"(8) describe the methods by which the library will publicize and promote the services of the library in cooperation with the local media, schools, businesses, social service agencies, and other appropriate entities; and

"(9) provide assurances that the materials, equipment and training provided will be used to supplement and not supplant materials, equipment and training otherwise available for the purposes of this part.

"ADVISORY COMMITTEE

20 USC 386e.

"SEC. 816. Each State receiving a grant under this part shall establish an advisory committee to assist in coordinating the services and programs assisted under this part. Such committee shall consist of, but not be limited to, representatives of—

"(1) the Governor's office;

"(2) the State library administrative agency;

"(3) the State Advisory Council on Libraries;

"(4) the State department of education;

"(5) the State employment office;

"(6) public television; and

"(7) adult literacy community organizations.

"SELECTION OF LITERACY LEARNING CENTERS

20 USC 386f.

"SEC. 817. Each State receiving a grant under this part shall designate the State library administrative agency as the library literacy center or shall select a library literacy center on a competitive basis from among the local public libraries submitting applications under section 815. In making such selection, the State shall give priority to applications which—

"(1) demonstrate the greatest ability to carry out the requirements of section 813 and to serve other local libraries; and

“(2) offer innovative approaches to improving library literacy services to adults and approaches which show promise for replication and dissemination.

“AUTHORIZATION OF APPROPRIATIONS

“SEC. 818. There are authorized to be appropriated \$3,000,000 for fiscal year 1991 and such sums as may be necessary for each fiscal year thereafter to carry out the provisions of this part.”. 20 USC 386g.

(b) CONFORMING AMENDMENTS.—Section 3 of the Act is amended by adding at the end thereof the following: 20 USC 351a.

“(20) The term ‘educationally disadvantaged adult’ has the meaning given that term in section 312(3)(A) of the Adult Education Act of 1988 (20 U.S.C. 2101a).

“(21) The term ‘adult with limited literacy skills’ means an adult whose minimal skills in reading, writing, or computation or in performing basic arithmetical computations preclude the individual from functioning in society without assistance from others.”.

SEC. 24. TECHNICAL AMENDMENT.

Title I of the Act is amended—

(1) by inserting “PUBLIC” before “LIBRARY” in the heading of such title; and

(2) by inserting “PUBLIC” before “LIBRARY” in the heading of section 101. 20 USC 352.

SEC. 25. EFFECTIVE DATE.

The amendments made by this Act shall take effect on October 1, 1990. 20 USC 351a note.

Approved March 15, 1990.

LEGISLATIVE HISTORY—H.R. 2742 (S. 1291):

HOUSE REPORTS: No. 101-237 (Comm. on Education and Labor) and No. 101-407 (Comm. of Conference).

SENATE REPORTS: No. 101-125 accompanying S. 1291 (Comm. on Labor and Human Resources).

CONGRESSIONAL RECORD:

Vol. 135 (1989): Sept. 12, considered and passed House.

Oct. 12, considered and passed Senate, amended.

Vol. 136 (1990): Feb. 27, House agreed to conference report.

Mar. 1, Senate agreed to conference report.